



Order under Section 69 Residential Tenancies Act, 2006

Citation: Riaz v Katarincic, 2026 ONLTB 2207

Date: 2026-01-06

File Number: LTB-L-075193-25

In the matter of: BASEMENT, 61 TODD RD
AJAX ON L1T4C5

Between: Muhammad Zafar Riaz

Landlord

And

Michael Katarincic

Tenant

Muhammad Zafar Riaz (the 'Landlord') applied for an order to terminate the tenancy and evict Michael Katarincic (the 'Tenant') because the Landlord in good faith requires possession of the rental unit for the purpose of residential occupation for at least one year.

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on December 4, 2025.

The Landlord and the Landlord's Legal Representative, Kimberley Covey, attended the hearing. Shahmir Zafar attended the hearing as a witness for the Landlord.

As of 1:35 p.m., the Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy and the claim for compensation in the application. Therefore, the tenancy is terminated as of January 17, 2026.
2. The Tenant was in possession of the rental unit on the date the application was filed.
3. On July 11, 2025, the Landlord gave the Tenant an N12 notice of termination ('N12 Notice') with the termination date of September 30, 2025. The Landlord claims that they require vacant possession of the rental unit for the purpose of residential occupation by their child.
4. Section 48.1 of the *Residential Tenancies Act, 2006* (the 'Act'), requires the Landlord to provide compensation to the Tenant in amount equal to one month's rent where an N12 notice of termination is served. The Landlord's representative submitted the Tenant was

provided with an e-transfer on September 19, 2025 and confirmed the Tenant had accepted this e-transfer.

5. The Landlord's son, Shahmir Zafar ('S.Z.'), provided a declaration stating he intends to reside in the rental unit for the purpose of residential occupation for a period of at least one year. Mr. Zafar testified at the hearing and confirmed his intentions.
6. S.Z. testified he currently resides with the Landlord on the main floor of the residential complex. He explained he and his spouse were married in December 2024 and living with his spouse on the main floor limits their privacy and independence. He testified they intend to move into the rental unit as soon as possible and will remain there for a minimum of at least one year.
7. The issue to be determined by the Board is whether the Landlord has satisfied the "good faith" requirement set out in subsection 48(1) of the Act which provides: A landlord may, by notice, terminate a tenancy if the landlord in good faith requires possession of the rental unit for the purpose of residential occupation for a period of at least one year by the landlord, the landlord's spouse, and/or the landlord's child.
8. The onus is on the Landlord to establish that the Landlord's child in good faith requires the rental unit for the purpose of her residential occupation.
9. In the leading case law involving a landlord's own use application, *Salter v. Beljinac*, 2001 CanLII 40231 (ON SCDC), [2001], O.J. No. 2792 (Div. Ct.), the Divisional Court held that:

the test of good faith is genuine intention to occupy the premises and not the reasonableness of the landlord's proposal...

10. Thus, the Landlord must establish that he genuinely intends to move into the unit. The Court also found in *Salter* that the Landlord's motives are "largely irrelevant".
11. The Landlord's son provided clear, consistent and uncontested evidence that he and his spouse intend to occupy the rental unit in the basement of the home.
12. On the basis of the uncontested evidence before the Board, I have no reason to doubt the truthfulness of the Landlord's son's testimony or his good faith intentions. I am therefore satisfied on the balance of probabilities, that the Landlord's son, in good faith requires possession of the rental unit for the purpose of his own residential occupation for a minimum of one year.

Daily Compensation, rent deposit

13. The Tenant was required to pay the Landlord \$3,526.25 in daily compensation for use and occupation of the rental unit for the period from October 1, 2025 to December 4, 2025.
14. Based on the monthly rent, the daily compensation is \$54.25. This amount is calculated as follows: \$1,650.00 x 12, divided by 365 days.
15. The Landlord collected a rent deposit of \$1,650.00 from the Tenant and this deposit is still being held by the Landlord. Interest on the rent deposit, in the amount of \$153.16 is owing to the Tenant for the period from September 11, 2020 to December 4, 2025.

16. The amount of the rent deposit and interest on the rent deposit is applied to the amount the Tenant is required to pay.

Relief from eviction

17. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the Act and find that it would be unfair to grant relief from eviction pursuant to subsection 83(1) of the Act. The Tenant did not attend the hearing to provide evidence regarding their circumstances. The Landlord is unaware of any circumstances of the Tenant that would cause the Board to delay or deny eviction of the Tenant.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before January 17, 2026.
2. If the unit is not vacated on or before January 17, 2026, then starting January 18, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after January 18, 2026.
4. The Tenant shall pay to the Landlord \$3,526.25, which represents compensation for the use of the unit from October 1, 2025 to December 4, 2025. The Landlord must deduct any monies received from the Tenant for rent from this amount.
5. The Tenant shall also pay the Landlord compensation of \$54.25 per day for the use of the unit starting December 5, 2025 until the date the Tenant moves out of the unit.
6. The Landlord owes \$1,803.16 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Tenant.
7. If the Tenant does not pay the Landlord the full amount owing on or before January 17, 2026, the Tenant will start to owe interest. This will be simple interest calculated from January 18, 2026 at 4.00% annually on the balance outstanding.

January 6, 2026

Date Issued

Susan Priest

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on July 18, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.